

Project Flex Fifth Submission Requires Full Planning Commission Review

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Date Sunday, August 16th, 2026 at 8:36 PM

Dear Members of the Board of Trustees and Planning Commission:

I have compared the third and fifth Project Flex submissions. The fifth submission should not receive administrative approval or be treated as a minor correction set.

First, it contains substantial physical redesigns. Pond C—which serves most of Project Flex—has been relocated and reengineered; a new 18-foot-high, approximately 1,020-foot-long acoustic wall is proposed; and the high-voltage route and rooftop/fire-access features have changed. These changes directly implicate drainage, hazards, public services, and site character—the ordinance factors used to determine whether a modification is minor. Nevertheless, the applicant requests administrative approval. (*Fifth Submission cover letter, pp. 2–5.*)

Second, the new noise result is not an apples-to-apples comparison. The third study included all 432 BESS cabinet fans in normal operations. The fifth excludes them as “emergency only,” without providing a documented sequence of operation or manufacturer confirmation. It also:

- Reduces chillers from 252 to 216 and their assumed sound power from 94.5 to 84.6 dBA;
- Reduces transformers from eight to six and their assumed sound power from 98 to 94 dBA; and
- Adds the new acoustic wall.

The reported reduction from 50.2 to 45.0 dBA therefore results from materially changed assumptions, equipment counts, and mitigation—not simply better performance by the same design. A prediction exactly at 45.0 dBA also provides no demonstrated compliance margin. (*Third study, PDF pp. 45–49; fifth study, pp. 5–10.*)

Third, the applicant acknowledges that Project Flex still relies partly on off-site drainage improvements and an easement that has “not yet been secured,” while requesting conditional approval. (*Cover letter, pp. 4–5.*) The Township’s Engineering Design Standards, Section 15-2(I), require necessary off-site easements before final site-plan approval. The Board denied the related easement requests by a 6–0 vote on May 4.

I respectfully ask the Township to require:

1. Full Planning Commission review rather than administrative approval;

2. A cumulative redline against the September 2025 conditionally approved plan;
3. Independent K&S review of the complete raw SoundPLAN files and changed operating assumptions; and
4. Execution and engineering approval of all necessary off-site easements before any final action.

Please retain this email in the official Project Flex record and confirm receipt.

Sincerely,

John Valenzuela

Lyon Township Resident

Sent with [Proton Mail](#) secure email.